

Tentative Rulings for August 6, 2026 Department 10

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 10 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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1.

CASE #	CASE NAME	HEARING NAME
CVRI2203939	J. VS COUNTY OF RIVERSIDE	DEFENDANT COUNTY OF RIVERSIDE'S MOTION FOR SUMMARY JUDGMENT/SUMMARY ADJUDICATION

Tentative Ruling:

EVIDENTIARY OBJECTIONS:

NIAC raises 12 objections to evidence submitted by the County in support of the motion: Objection Nos. 1 - 5 and 7, 9, AND 10: OVERRULED

Objection No. 6: SUSTAINED IN PART and OVERRULED IN PART. sustained as to a factual error regarding dates (characterization that the “Inconclusive” finding occurred on June 25, 2012; the correct date per the County’s record is June 25, 2013) but overruled concerning the admissibility of the records.

Objection Nos. 8, 11, 12: SUSTAINED IN PART and OVERRULED IN PART. Hearsay statements from McMorris are inadmissible, while Griffith’s findings are admissible as official records.

The Court OVERRULES all four of the County’s evidentiary objections to Plaintiff’s and NIAC’s evidence (Plaintiff’s deposition testimony, declaration, and allegations in the Complaint).

First Cause of Action — Negligence

The County moves for summary adjudication of the first cause of action for negligence on two independent grounds: (1) lack of notice, and (2) discretionary immunity under Gov. Code § 820.2. Plaintiff and NIAC respond that a triable issue exists on notice, that immunity does not apply to the operational failures alleged, and that the County independently breached mandatory statutory duties. Each ground is addressed in turn below.

Notice of Sexual Abuse

The County’s central argument is that it had no notice of sexual abuse because the contemporaneous social worker notes and CDSS records document investigations of physical abuse and sexual abuse by Burnside, another resident, but contain no mention of sexual abuse by Silva (foster parent) or McMorris (childcare worker at LPW). The County argues that Plaintiff’s 2026 deposition testimony and declaration, which was given more than a decade after the events, are “self-serving” and insufficient to defeat summary judgment when contradicted by the entire contemporaneous record.

Furthermore, the County contends that even if Plaintiff did report abuse, his admitted history of making false reports to be removed from placements creates reasonable grounds for social workers to approach any claims of abuse with skepticism.

The County's argument fails at the summary judgment stage. Plaintiff has offered his own sworn testimony that he reported Silva's sexual abuse to County social worker O'Shea on three specific occasions—at a park, by telephone, and at his elementary school—with specific words used and specific dismissive responses by O'Shea. (PAMF ¶¶ 3–6, 8, 9.) Plaintiff has likewise offered sworn testimony that he told O'Shea, in person and by phone, that McMorris (childcare worker) and Burnside (another resident) were “touching him sexually” and that O'Shea again refused to act. (*Id.* at ¶¶ 17–20.) This testimony is based on personal knowledge of events Plaintiff personally experienced and reports he personally made.

The County's reliance on the absence of contemporaneous documentation is precisely the kind of evidentiary conflict that summary judgment cannot resolve. In *Ahn v. Kumho Tire U.S.A., Inc.* (2014) 223 Cal.App.4th 133, the California Court of Appeal held that a party's own sworn testimony is not rendered inadmissible or insufficient merely because it is contradicted by other record evidence; where the record contains credibly conflicting evidence, the credibility determination belongs to the trier of fact. (*Id.* at 145–46; *see also Aguilar, supra*, 25 Cal.4th at 856 [“[T]he court may not weigh the plaintiff's evidence or inferences against the defendants' as though it were sitting as the trier of fact.”].) Whether the jury ultimately credits Plaintiff's account over the County's documentary record, or credits the County's contention that meticulously documented physical abuse investigations make it implausible that parallel sexual abuse reports went unrecorded, is essentially a jury question. A reasonable trier of fact could find Plaintiff's account credible (*Huckey v. City of Temecula* (2019) 37 Cal.App.5th 1092, 1105), and that suffices to defeat summary judgment on the notice element.

Discretionary Immunity Under Gov. Code § 820.2

The County alternatively invokes discretionary immunity, arguing that its foster placement and monitoring decisions were policy level judgments immune under Gov. Code § 820.2. As stated in section 820.2, “a public employee is not liable for an injury caused by his or her act or omission where he or she is exercising discretion in the performance of his or her duties.” (Gov. Code § 820.2.) However, section 820.2 immunity is not coextensive with any exercise of judgment. (*Caldwell, supra*, 10 Cal.4th at 979 [internal citation omitted].) It is reserved for “basic policy decisions” that involve a conscious balancing of risks and advantages by an official with the authority to make such policy determinations. (*Id.* at 981; *see also Johnson v. State of Cal.* (1968) 69 Cal.2d 782, 793–96.) Ministerial or operational implementation of established policy is not immune. (*Caldwell, supra*, 10 Cal.4th at 981.)

Caldwell establishes that discretionary immunity applies only to decisions that require an official to weigh competing considerations, assess risks, and make policy-

level decisions. In that case, the California Supreme Court held that the discretionary immunity does not extend to actions wherein an employee, such as a social worker, simply implements established policies without engaging in the necessary deliberative process. (*Id.* at 986.) This means that if an employee's action amounts to a failure to investigate and follow procedures pertaining to child abuse reports, it may constitute an operational failure rather than a protected discretionary act.

On Plaintiff's version of the facts, which the Court must credit at this stage, O'Shea did not weigh competing risks and advantages before deciding not to investigate Plaintiff's reports. O'Shea summarily dismissed them with statements such as "I'm not going to move you just because I'm not getting my way" and "I'm not doing this again with you." (PAMF ¶¶ 9, 19.) That is a triable dispute over whether O'Shea's response was a considered policy judgment protected by section 820.2 or an operational failure to carry out an established investigative function. The County has not produced evidence that O'Shea (or any County policymaker) engaged in the deliberative risk balancing *Caldwell* requires. Discretionary immunity therefore does not support summary judgment on this record.

Mandatory Duties Under Gov. Code § 815.6

Under Gov. Code § 815.6, "[w]here a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty." (Gov. Code § 815.6.) Application of section 815.6 requires a three-part showing: (1) an enactment imposes a mandatory, not discretionary, duty; (2) the enactment is designed to protect against the kind of injury the plaintiff suffered; and (3) breach of the mandatory duty was a proximate cause of the injury. (*Guzman v. Cnty. of Monterey* (2009) 46 Cal.4th 887, 898.)

Plaintiff independently argues that the County is directly liable under section 815.6 for breach of mandatory duties imposed by Pen. Code § 11166 (mandated reporting of suspected child abuse) and Wel. & Inst. Code § 328 (duty to investigate reports of abuse or neglect). NIAC also emphasizes that these duties include ensuring that foster children are supervised at all times by authorized adult caregivers. NIAC points to evidence that O'Shea discovered Plaintiff was sleeping overnight at Silva's adult group home during a two-week vacation yet failed to take any investigative action, which constitutes notice of unsafe conditions and duty breaches. (Aleagha Decl. ¶ 4(a).) Whether these statutes impose mandatory duties designed to protect against the injury Plaintiff suffered, and whether O'Shea's alleged inaction breached them, depends on the disputed factual question of whether Plaintiff made the reports he claims to have made. That dispute is triable and provides an additional, independent basis for denying summary adjudication on the first cause of action.

Foreseeability Theory

Plaintiff further contends that sexual abuse in foster care is generally foreseeable such that the County owed a protective duty even absent actual knowledge of a specific perpetrator's propensities. (Pl.'s Opp. 13:7–15:2, 16:11–17.) The Court need not resolve the scope of that broader duty because the actual notice dispute is itself sufficient to preclude summary judgment. Accordingly, the County is not entitled to summary adjudication on the first cause of action for negligence.

Fourth Cause of Action — Negligent Hiring, Retention, and/or Supervision

The elements of a cause of action for negligent hiring, retention, or supervision are: (1) the employer's hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. (*Evan F. v. Hughson United Methodist Church* (1992) 8 Cal.App.4th 828, 836–37.) In a negligent hiring, retention, or supervision case, a duty arises only where there is “the existence of an employment relationship.” (*Phillips v. TLC Plumbing, Inc.* (2009) 172 Cal.App.4th 1133, 1142.)

Here, the County moves for summary adjudication of the fourth cause of action for negligent hiring, retention, and/or supervision on the ground that the County had no employment relationship with the alleged perpetrators—Silva was a foster parent licensed by Community Care Licensing, not by the County and McMorris was employed by LPW, not by the County. That argument, standing alone, does not dispose of the claim as framed by Plaintiff.

Plaintiff's theory is not that the County negligently hired or supervised Silva (foster parent) or McMorris (childcare worker at LPW). It is that the County negligently supervised its own social worker, O'Shea, whose alleged failure to investigate and respond to Plaintiff's reports was the operative negligent act. There is no dispute that O'Shea was a County employee. Whether the County adequately trained, supervised, and retained O'Shea in her handling of foster child abuse reports is a triable question that turns on the same underlying factual dispute over what Plaintiff reported and how O'Shea responded. Because that dispute cannot be resolved on this record, summary adjudication of the fourth cause of action is likewise unwarranted.

Accordingly, the County is not entitled to summary adjudication on the fourth cause of action for negligent hiring, retention, and/or supervision.

For the foregoing reasons, the Court DENIES the motion because the County has not met its burden of establishing that there is no triable issue of material fact. Genuine disputes of material fact exist on the question of whether Plaintiff reported sexual abuse to O'Shea, the County social worker, and, if so, whether O'Shea's response constituted a breach of the County's duty of care.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2401966	OLIVA VS INLAND EMPIRE UTILITIES AGENCY	MOTION TO CONTINUE TRIAL READINESS CONFERENCE AND TRIAL

Tentative Ruling:

The Court DENIES the Motion to Continue. The evidence does not establish good cause for a continuance. (Rule 3.1332(c).) Absent a showing of diligence, the failure to complete discovery or other trial preparation does not constitute good cause. (Rule 3.1332(c)(6).)

3.

CASE #	CASE NAME	HEARING NAME
CVRI2402667	AGUIRRE VS ARTEAGA	MOTION FOR SUMMARY ADJUDICATION ON COMPLAINT

Tentative Ruling:

The Court GRANTS Defendant/Plaintiff, Jaime Francisco Arteaga, Jr.'s Request for Judicial Notice. The Court GRANTS summary adjudication of Arteaga's partition action, and the 9th cause of action for partition in Aguirre's FAC, in favor of Arteaga and against Aguirre.

A co-owner of real or personal property may bring an action for partition to sever the unity of possession." (*Schwartz v. Shapiro* (1964) 229 Cal.App.2d 238, 257; *LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484, 493.) Partition changes the rights of cotenants from common possession of the entire property into individual rights of exclusive possession of some portion of the property or to sale proceeds of the property for each co-tenant. (*Dabney v. Dabney* (2002) 104 Cal.App.4th 379.)

Partition is an equitable remedy that is governed by statute. (*Cummings v. Dessel* (2017) 13 Cal.App.5th 589, 596-597.) In an action for partition, the court determines the interests of the parties, and whether the plaintiff has the right to partition. (CCP §§ 872.610, 872.710.) "If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition." (CCP § 872.720(a).) If demanded, a co-owner is entitled to partition as an absolute right. (*Williams v. Williams* (1967) 255 Cal. App. 2d 648, 651.)

There are three methods of partition: (1) physical division in kind of the property (CCP § 872.810); (2) sale of the property (CCP § 872.820); and (3) division by appraisal. In lieu of dividing the property among the parties, the court shall order the

property be sold and the proceeds divided among the parties in accordance with their interests in the property if the parties agree to such relief or the court determines sale and division of the proceeds would be more equitable than a division of the property. (CCP § 872.820.)

In this motion, Arteaga seeks summary adjudication of four issues: 1) partition applies to the subject property (CCP § 874.311, *et. seq.*; 2) the parties are entitled to an adjudication of the fair market value (FMV) (CCP § 874.316); 3) Aguirre irrevocably elected partition by sale in her FAC triggering CCP § 874.217(a)'s exclusion of the selling cotenant from the class of eligible purchasing cotenants; and, 4) Arteaga seeks partition by buyout, and is entitled to purchase Aguirre's interest (CCP § 874.317.)

Arteaga asserts that as a co-owner of the subject property, he has an absolute right to partition unless 1) he is statutorily ineligible (CCP § 874.317(a)) or 2) he is barred by a valid waiver (CCP § 872.710(b)). The Partition of Real Property Act (Act) "applies to real property held in tenancy in common where there is no agreement in a record binding all the cotenants which governs the partition of the property. (CCP § 874.311(a), (b).) The Act applies to partition action filed on or after 1/1/23. (CCP § 874.311(c).) The Court determines the FMV of the property by ordering an appraisal unless all cotenants have agreed to the value or to another method of valuation or the court determines the evidentiary value of the appraisal is outweighed by the costs of the appraisal. (CCP § 874.316.)

CCP § 874.317(a) provides that "[i]f any cotenant requested partition by sale, the court shall, after the determination of value under section 874.316, send notice to the parties that any cotenant except a cotenant that requested partition by sale may buy all the interests of the cotenants that requested partition by sale." Within 45 days of sending such notice, "any cotenant except a cotenant that requested partition by sale may give notice to the court that it elects to buy all the interests of the cotenants that requested partition by sale." Based on this authority, Arteaga argues that partition must be ordered and he must be allowed to buy out Aguirre's interest in the property.

It is undisputed that Arteaga is Plaintiff, Cynthia Aguirre's son, and that she is the daughter of Frank Aguirre (deceased). (Undisputed Material Fact [UMF] No. 1.) Frank Aguirre had transferred title to the property to himself, Cynthia Aguirre, and Arteaga, as joint tenants. (UMF No. 2.) Frank Aguirre passed away on 9/9/22, which left Cynthia Aguirre and Arteaga and surviving joint tenants. (UMF Nos. 4-5.) On 5/17/224, Arteaga recorded a declaration to sever the joint tenancy leaving him and Aguirre, as tenants in common, each with a 50% interest. (UMF No. 6.)

On 5/15/24, Aguirre's original verified Complaint was filed, which included a cause of action for partition by sale, which was included in her FAC. (UMF No. 10.) On 5/21/24, Arteaga filed his Complaint, which contained a cause of action for partition. (UMF No. 12.)

In January of 2025, the parties stipulated to an appraiser (C. D. McCullough) to obtain the FMV of the property. (UMF No. 8.) On 2/24/25, Mr. McCullough visited the property and prepared a certified appraisal of the property finding the FMV to be \$542,000. (UMF No. 9.)

Based on these facts, Arteaga argues that both parties seek partition, but Aguirre has waived her right to purchase Arteaga's interest in the property by requesting partition *by sale*. (CCP § 874.317(a).)

To the contrary, Aguirre asserts that Arteaga is not entitled to buy out Aguirre's interest because he filed a competing Complaint for partition, and has not established that he has reserved a right to buy out Aguirre when he is also a cotenant requesting partition. (Aguirre's Separate Statement [Aguirre's SS], Issue No. 2, Additional Material Facts [AMF], No. 1.) Aguirre also asserts that her partition cause of action is alleged as an *alternative* to her other causes of action. (Aguirre's SS, UMF No. 10; Issue No. 3, AMF No. 1.) Therefore, she concludes there are triable issues of material fact as to the ownership interests in the property.

In addition, Aguirre argues there is a genuine issue of material fact as to the FMV of the property because Arteaga is relying on an appraisal that is more than a year old and the property's value has increased since the time the appraisal occurred (February of 2025.) (Aguirre's SS, Issue No. 1, AMF Nos. 1-2.) She asserts the FMV is \$616,195 as indicated on Redfin.com. (Aguirre's SS, Issue No. 1, AMF, Nos. 1-2.) Without citing any authority, Aguirre concludes that the Court "needs to try the issue of" FMV based on the current conditions of the property.

Further, Aguirre argues that Arteaga is not entitled to partition when the parties' interests have not been determined and Aguirre's equitable claims related to ownership and title are still pending (e.g., Aguirre claims 100% title in her quiet title cause of action.) She asserts those claims must be determined before a judgment for partition can be entered.

In response to Aguirre's arguments in the Opposition, Arteaga argues that Aguirre's attempt to create a dispute over FMV fails because "using inadmissible internet estimates (Redfin) is legally insufficient." (Reply. P. 2:8-9.) Specifically, Arteaga asserts the Redfin.com estimate lacks foundation, constitutes hearsay, lacks authentication, and constitutes improper expert opinion without a reasoned explanation of methodology. As such, Arteaga argues this "evidence" should be ignored. Although Arteaga did not assert properly formatted formal objections (Cal. Rules of Court, Rule 3.1350(c)), the only admissible evidence is the stipulated appraisal.

In addition, Arteaga disputes a critical additional material fact on the ground that Arteaga's Complaint explicitly alleges he "is electing to buy out all interests of the other cotenants of the Property." (Arteaga's Reply Separate Statement [RSS], Issue No. 2, AMF No. 1.)

Moreover, Arteaga asserts that Aguirre has admitted certain facts according to the Court's 5/29/26 order deeming matters admitted as against Aguirre. Specifically, Request for Admission (RFA) No. 5 states "ARTEAGA's interest in the MARTIN STREET is as a tenant in common with a 50% interest in said real property." (Reply, p. 4:26-28.) RFA No. 6 states "YOUR [Aguirre] interest in Martin Street is as a tenant in common with a 50% interest in said real property." (Reply, p. 5:1-2.) RFA No. 7 states "YOU [Aguirre] are not entitled to credits, claims, offsets or reimbursements against ARTEAGA's 50% ownership interest in MARTIN STREET." (Reply, p. 5:3-4.) RFA No. 8 states "ARTEAGA has a statutory right to partition his interest in MARTIN STREET from YOUR claimed interest in MARTIN STREET, pursuant to CCP § 874.311.) (Reply, p. 5:5-6.) Notably, Aguirre failed to oppose the motion to deem RFAs admitted.

Based on the foregoing, Arteaga has established that his Complaint states he elected to buy out his cotenant's interest in the subject property, which barred Aguirre from buying out Arteaga's interest. (CCP § 874.317(a).) Arteaga also established that he and Aguirre each own a 50% interest in the title to the subject property based on the 2021 grant deed from Frank Aguirre (deceased.) Aguirre has not established otherwise, nor has she raised any triable issue of material fact as to the partition cause of action. Thus, summary adjudication of that claim is appropriate.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2407387	PELAYO VS AMERICAN HONDA MOTOR CO., INC.	MOTION TO BIFURCATE

Tentative Ruling:

The Court directs the moving party to Section E.7. of the Court's Trial Setting Order, issued July 17, 2026. The Court finds that based upon its prior Order; the Motion is moot.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2506218	DAO VS AMERICAN HONDA MOTOR CO., INC.	MOTION TO BIFURCATE

Tentative Ruling:

The Court directs the moving party to Section E.7. of the Court's Trial Setting Order, issued March 10, 2026. The Court finds that based upon its prior Order; the Motion is moot.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2501146	CITY OF RIVERSIDE VS DEUTSCHE BANK	RECEIVER'S EX PARTE APPLICATION FOR AN ORDER APPROVING REMEDATION AND FINANCING PLANS

Tentative Ruling:

No tentative ruling; the Court requests appearances, either in person or telephonically.